David Voegele
Judge Executive
dvoegele@oldhamcountyky.gov

Kevin Nuss
Deputy Judge Executive
knuss@oldhamcountyky.gov

FISCAL COURT
AGENDA ITEM REQUEST FORM

Today's Date: October 12, 2026

Name of Document and/or Agenda Item: 2027 Litter Abatement Grant Application

_Caroline Schoenig – Solid Waste & Recycling / cschoenig@oldhamcountyky.gov
Submitted by (Name – Department - Committee) (phone / email)

Does this require Fiscal Court's approval? Yes: _X__ No: ____

Fiscal Court Presentation Date: October 20, 2026

Who will be presenting Item to Fiscal Court? _Caroline Schoenig, Solid Waste & Recycling_
(Ex: Committee, Chairperson, Department, Staff, Name)

What action (motion) are you requesting of the court? Requesting that County Judge/Executive Voegele be allowed to apply for and accept the grant, if awarded to Oldham County.

DRAFT

***** REVIEWED AND APPROVED AS TO FORM & LEGALITY BY COUNTY ATTORNEY *****

D Berry Baxter
(Signature)
D. Berry Baxter, Oldham County Attorney

10.14.2026
Date

Kentucky Department for Environmental Protection
Division of Waste Management
Recycling and Local Assistance Branch
300 Sower Boulevard, Second Floor – Frankfort KY 40601
(502) 564-6716

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DO NOT WRITE IN THIS SPACE

County Request and Agreement for Litter Abatement Program Grant Funding

1. Grant Year	2027
2. Federal ID Number	61-6013124
3. County	Oldham County

4. TERMS AND CONDITIONS FOR GRANT FUNDING

4(a).	The grantee shall conduct three litter cleanups along public roads each year as required by KRS 224.43-345 and 401 KAR 49:080, Section 3(1) in accordance with 401 KAR 49:080 Section 1(5). A public road cleanup is defined as the "cleanup of litter along a number of public road miles equivalent to one-third (1/3) of the total public road miles in the solid waste management area, excluding total city street miles".
4(b).	Unless the incorporated city received litter abatement grant funding, the grantee shall conduct litter cleanups along city streets two (2) times per year in accordance with 401 KAR 49:080 Section 1(5). A city street cleanup is defined as the "cleanup of litter along a number of city street miles equivalent to one-half (1/2) of a city's total street miles".
4(c).	The amount of litter abatement program grant funding is determined in accordance with KRS 224.43-505 and the total number of applicants applying for the grant.
4(d).	The litter abatement program grant funding shall be used for direct expenses, as defined in 401 KAR 49:080 Section 1(2), incurred during the calendar year which the grant is distributed, associated with litter abatement programs, for litter cleanup on public roads and city streets as provided in KRS 224.43-505, and to meet the requirements established in KRS 224.43-345.
4(e).	By March 1, of the year following the grant distribution, the grantee shall submit a completed "Solid Waste Management Area Annual Report", DEP 6061, to the cabinet.
4(f).	Litter abatement program grant funds not spent during the calendar year shall be submitted to the cabinet by April 15th the year following grant distribution.

5. CERTIFICATION

The county hereby applies for grant funding for litter abatement program activities allowed pursuant to KRS 224.43-505, and agree to the above terms and conditions. I am aware that KRS 224.99-010(4) provides for penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

County Judge Executive/109 Board Chair (*Print Name*)	Signature	Date

Title/Position	Email Address	Phone	Fax

100 W Jefferson St Business Address	LaGrange City	40031 Zip Code

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GENERAL INSTRUCTIONS

County Request and Agreement for Litter Abatement Program Grant Funding

Instructions are provided for DEP 7117, County Request and Agreement for Litter Abatement Program Grant Funding. If you have questions, please call the Division of Waste Management at (502) 564-6716 and ask for the Recycling and Local Assistance Branch. This form must be completed by typing or printing legibly.

Important Note: This form is to be completed by counties applying for litter abatement program grant funding in accordance with KRS 224.43-505 (2)(d).

DEADLINE: Received by November 1st.

Submit DEP 7117 form to:

Kentucky Department for Environmental Protection
Division of Waste Management
Recycling and Local Assistance Branch
300 Sower Boulevard, Second Floor
Frankfort, KY 40601
(502) 564-6716

Section 1. Grant Year: Enter the year grant funding is being requested.

Section 2. Federal ID Number: Enter the federal identification number of the applicant.

Section 3. County: Enter the name of the county applying for the grant funding.

Section 4.(a) through (f). Terms and Conditions for Grant Funding: The applicant agrees to the terms and conditions of this section by signing Section 5, Certification.

Section 5. Certification: County Judge Executive or 109 Board Chair must certify the information on this form with their signature and date. Certification must be included for form to be complete. Copied or stamped signatures are not acceptable. Enter the County Judge Executive or 109 Board Chair's name and signature, title/position, business address, email address, phone and fax numbers.

DRAFT

All information submitted on this form will be subject to public disclosure to the extent provided by Kentucky law. Persons filing this form may make claims of confidentiality in accordance with 400 KAR 1:060.

Andy Beshear
GOVERNOR

ENERGY AND ENVIRONMENT CABINET
DEPARTMENT FOR ENVIRONMENTAL PROTECTION
300 Sower Boulevard
Frankfort, Kentucky 40601
Phone: (502) 564-2150
Fax: 502-564-4245

John S. Lyons
SECRETARY

Amanda W. LeFevre
COMMISSIONER

August 5, 2026

Dear County Judge/Executive and/or 109 Board Chair:

Now is the time to apply for 2027 Litter Abatement Grant funding. The purpose of this letter is to provide you with information about the Litter Abatement Grant program and to provide you with a copy of the grant agreement and related forms. For this grant cycle:

- The signed "County Request and Agreement for Litter Abatement Program Grant Funding," attached, **must be received in this office by 4:30 p.m. on November 2, 2026,** pursuant to KRS 224.43-505. Litter abatement grant agreements received after that date will not be accepted. ***Please email the form to lisa.evans@ky.gov*** **NOTE: This incorporated form (DEP 7117) is the required form to be used to apply for the 2027 Litter Abatement Grant.**

- **The amount of grant funding each county is eligible to receive will not be determined until after November 2, 2026**. Once all applications are received, the amount of funding available per county will be calculated in accordance with statutory requirements.

- The litter abatement grant funding is to be used for direct expenses, as defined in 401 KAR 49:080 Section 3, incurred during calendar year 2027, associated with anti-litter control programs; for litter cleanup on public roads as provided in KRS 224.43-505; and to meet the requirements established in KRS 224.43-345.

- **Counties are not responsible for contacting their eligible cities before applying for this grant.** The cabinet will notify all incorporated cities of the availability of and eligibility requirements for this grant; enter into agreements directly with those eligible cities that apply; and obtain program information directly from those grantee cities rather than from the counties. **If an incorporated city does not receive litter grant funding from the cabinet, then the county is responsible for performing two (2) city street cleanups in that incorporated city during the calendar year. 401 KAR 49:080 Section 4(2).**

- By March 1, 2028, the county shall submit and certify their litter abatement grant documentation within their Solid Waste Management Area Annual Report Form.

- Litter abatement grant funds not spent during calendar year 2027 must be reimbursed to the cabinet by April 15, 2028.

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- Per 401 KAR 49:080, Section 6, any county failing to comply with the terms of the litter abatement grant agreement shall be ineligible for litter abatement grant funding for the following year.

- Per 401 KAR 49:080, Section 3(2)(b), "Litter abatement grant program recipients shall keep documentation related to grant activities, including grant expenditure documentation, for at least three (3) years."

- There is no match requirement for this grant.

- **Provided with this litter packet is a copy of the guidelines in place by the Division if the county plans to use the Litter Abatement Grant for a "Trash for Cash" program. The guidelines are a part of the litter grant packet, and the county agrees to the guidelines once the county signs the County Request and Agreement for Litter Abatement Program Grant Funding form and submits it to the Division.**

- **No equipment can be purchased with this grant. No fuel or repairs of equipment is allowed because those expenses are included in the FEMA hourly rate.**

The disbursement of litter abatement grant funding will be prior to January 1, 2027. Please provide the county's address (as registered with the Finance Cabinet) and the county's Federal ID information on the Litter Abatement Grant Funding agreement. **Submit the signed form by 4:30 p.m., on November 2, 2026, via email to lisa.evans@ky.gov.**

If you have any questions, feel free to contact me at lisa.evans@ky.gov or at 502-782-6355.

Sincerely,

Lisa G. Evans

Lisa G. Evans
Environmental Scientist Consultant I
Recycling & Local Assistance Branch

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c: County Solid Waste Coordinator

Attachments: DEP 7117 County Request and Agreement for Litter Abatement Program Grant Funding
Guidelines for Trash for Cash Programs when using State Litter Abatement Grant
Frequently Asked Questions for Anti-Litter Control Program Grants
FEMA Rates

Kentucky Department for Environmental Protection
Division of Waste Management
Recycling and Local Assistance Branch
300 Sower Boulevard, Second Floor – Frankfort KY 40601
(502) 564-6716

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County Request and Agreement for Litter Abatement Program Grant Funding

1. Grant Year	
2. Federal ID Number	
3. County	

4. TERMS AND CONDITIONS FOR GRANT FUNDING

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4(e).	By March 1, of the year following the grant distribution, the grantee shall submit a completed "Solid Waste Management Area Annual Report", DEP 6061, to the cabinet.
4(f).	Litter abatement program grant funds not spent during the calendar year shall be submitted to the cabinet by April 15th the year following grant distribution.

5. CERTIFICATION

The county hereby applies for grant funding for litter abatement program activities allowed pursuant to KRS 224.43-505, and agree to the above terms and conditions. I am aware that KRS 224.99-010(4) provides for penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

County Judge Executive/109 Board Chair (*Print Name*)	Signature	Date

Title/Position	Email Address	Phone	Fax

Business Address	City	Zip Code

DRAFT

GENERAL INSTRUCTIONS
County Request and Agreement for Litter Abatement Program Grant Funding

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Section 3. County: Enter the name of the county applying for the grant funding.

Section 4.(a) through (f). Terms and Conditions for Grant Funding: The applicant agrees to the terms and conditions of this section by signing Section 5, Certification.

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All information submitted on this form will be subject to public disclosure to the extent provided by Kentucky law. Persons filing this form may make claims of confidentiality in accordance with 400 KAR 1:060.

GUIDELINES FOR
"TRASH FOR CASH" PROGRAMS
WHEN USING STATE LITTER ABATEMENT GRANT

"Trash for Cash" programs can provide funding to non-profit groups to collect litter along roadways. The Division has developed the following guidelines for cities or counties that fund "Trash for Cash" programs using the Kentucky Litter Abatement Grant

1. ELIGIBILTY

Non-profit groups only. Group must be located in the county where the litter cleanup is conducted. The types of groups that may be appropriate for a "Trash for Cash" program include:

- School sports teams, bands and cheerleaders
- Boy Scouts
- Girl Scouts
- Conservation District Groups
- Relay for Life Teams
- Church Groups

2. RATE PER MILE

Local governments can pay **up to $100 per mile** (which includes both sides of the road). No more than $100 per mile will be approved for grant funding. The number of miles assigned to a group is left up the county/city.

3. SAFETY TRAINING

Local government should meet with group leaders to discuss safety issues (proper clothing, materials that should not be picked up, etc.) (Boone County's Safety First guidance document is included in the grant packet as an example.)

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4. SUPPLIES

Local government will provide the groups with bags, vests, gloves, pick-up sticks, signage ("litter crew ahead" or similar) and insect repellent. A one-time purchase of a safety light is an allowable grant expense.

5. PAYMENT

It is recommended that funds not be released until the groups return the following:

- Left over bags
- Vests
- Pick up sticks (do not need to be purchased for each cleanup)
- Signage
- Safety light
- Any other supplies

6. REPORTING

Groups must report to the Solid Waste Coordinator the number of bags collected and number of miles cleaned.

7. INSPECTION

SWC (or other county/city employees) should inspect the roads after the cleanup to make sure they are clean before issuing the check.

8. COLLECTION

Group can bring filled bags to a central location following pickup or can leave them on the side of the road. If left on the side of the road for the road department or solid waste department to pick up, the hourly wage plus benefits of the employee as well as the hourly FEMA rate for the vehicle used can be charged to the grant while they are picking up the bags.

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9. EXPERIENCE

It is recommended to have at least one member of the group write a letter to the local government stating what the group learned from the experience of picking up litter along the roadways.

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Frequently Asked Questions for Litter Abatement Program Grants

What are eligible expenses for Litter Abatement program grants?

- Litter Abatement program grant recipients shall use grant funding for **"direct expenses"** associated with public road cleanup and city street cleanup requirements referred to in KRS 224.43-505(d)(5). See 401 KAR 49:080, Section 4(2)(a).

- **"Direct expenses"** include staff time, supplies, contract costs, expenditures related to the operation of equipment, actual disposal costs incurred, and activities, including education, focusing on litter prevention and litter cleanup along public roadways. Direct expenses do not include the purchase of a motor vehicle or lease of a motor vehicle when the lease includes a purchase option. See 401 KAR 49:080, Section 1(2)(a).

Does "public road" mean only a county road, or does it also include state roads?

- "Public road" means any city, county, state, federal, or limited access street, highway, or turnpike, including bridges and bridge approaches. See KRS 224.43-500(1)(c).

What forms must the grant recipient submit to the cabinet after performing litter abatement program activities with grant funds?

- **CITIES** – City Litter Abatement Program Annual Report and Certification for Grant Funding (Form DWM 4900). The form will be available on our website https://eec.ky.gov/rla and will also be sent through email from the Kentucky League of Cities in December. Incorporated cities must submit this form to the cabinet by February 1. See 401 KAR 49:080, Section 4(6)(b)3. This form must be signed by the **head of the governing body**. See 401 KAR 49:080, Section 4(6)(b)1.

- **COUNTIES** – A county will submit their expenditures to the cabinet by March 1 in their annual report (Form DWM 6061). See 401 KAR 49:080, Section 3(3). See 49:080, Section 4(6)(b)2. The form will be available on our website **https://eec.ky.gov/rla.** This form must be signed by the **head of the governing body**. See 401 KAR 49:080, Section 4(6)(b)1.

How long must anti-litter control program grant recipients keep documentation related to grant activities, including grant expenditure documentation?

- Litter abatement program grant recipients shall keep documentation related to grant activities, including grant expenditure documentation, for at least three (3) years. See 401 KAR 49:080, Section 4(2)(b).

What if the grant recipient does not spend all litter grants funding during the calendar year?

- Litter abatement program grant funding not spent in the calendar year it is received shall be returned to the cabinet by April 15 of the following year. See 401 KAR 49:080, Section 4(8).

Where can I find 401 KAR 49:080?

- By clicking *here* or going to http://www.lrc.ky.gov/kar/401/049/080reg.htm .

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FEMA Hourly Rates
(Effective July 1, 2025)

Equipment Type	Rates
Dozer, 453 to 850 HP	$550.14
Dozer, 364 to 452 HP	$360.30
Dozer, 216 to 363 HP	$213.48
Dozer, 131 to 215 HP	$135.15
Dozer, 105 to 130 HP	$ 86.70
Dozer, 81 to 104 HP	$ 64.18
Dozer, to 80 HP	$ 47.73
Rubber Tired Backhoe 1.2 cy bucket	$ 110.03
Excavator 1.5 cy bucket capacity	$107.93
Excavator 2.5 cy bucket capacity	$150.99
Track Loader 1 cy bucket capacity	$ 41.49
Track Loader 2cy bucket capacity	$ 62.38
Farm Tractor	$ 92.56
Dump truck, 8 cy capacity	$ 95.38
Dump truck, 10 cy capacity	$100.63
Dump truck, 12 cy capacity	$120.74
Dump Truck, 14 cy capacity	$122.94
Dump Truck, 18 cy capacity	$147.99
Pickup, 1/2 ton	$ 17.79
Pickup, 4 Wheel Drive (1 ton)	$ 15.74
Crew cab, 2 Wheel Drive	$ 30.44
Crew cab, 4 Wheel Drive (or 1¼ ton)	$ 48.61
Passenger Van	$ 18.99

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For FEMA rates for equipment not listed above, see www.fema.gov/assistance/public/tools-resources/schedule-equipment-rates